

ANNUAL SUBSCRIPTION ORDER: FOUNDING SEAT

Category read, 2027 · No. {{order_number}}

Provider: Minds & Models, s.r.o., ID No. 22265252, VAT No. CZ22265252, registered office Hlubočepská 85/64, Hlubočepy, 152 00 Prague, Czech Republic, registered with {{court}}, file No. {{file_number}}, represented by {{director}}, managing director ("Provider").

Customer: {{legal_name}}, ID No. {{id}}, VAT No. {{vat}}, registered office {{address}}, represented by {{representative}} ("Customer").

1. Definitions

Competitive Set: the group of brand houses competing for the same purchase occasion in the given channel, as defined in Schedule 1.

Chain: the retail chain named in Schedule 1.

Rights-Clean Outlet: an outlet of the Chain which (a) is equipped with the Provider's functioning device, (b) in respect of which the Provider holds valid rights to supply data within the scope of Schedule 1, and (c) has satisfied (a) and (b) continuously for at least 45 days.

Quarterly Read: the output described in art. 3.

Data Agreement: the agreement between the Provider and the Chain permitting the Provider to supply data within the scope of Schedule 1.

Activation: the first day of the calendar month following the date the Data Agreement comes into force.

Density Test Date: 30 June 2027.

2. Subject

2.1 The Provider supplies the Customer with an annual category read subscription within the scope defined in **Schedule 1** (channel × Competitive Set × Chain, the "Scope").

2.2 The principal deliverable is the **Quarterly Read** (art. 3). The subscription also includes access to the Provider's portal (art. 4).

2.3 The Scope is binding. Any extension of the Scope (further chains, further outlets, point-of-sale data) is a separate deliverable with its own price.

2.4 If the Data Agreement has not come into force by **31 March 2027**, this Order lapses automatically. Neither party owes the other any performance or compensation; the separate study order is unaffected.

3. The Quarterly Read

3.1 Four times a year the Provider delivers:

- data tables (XLSX): segment × engagement × purchase within the Competitive Set,
- a written interpretation,
- one review call (up to 60 minutes).

3.2 Delivery: within 30 days of the end of each calendar quarter.

4. Portal

4.1 Portal access will be made available to the Customer no later than **{{portal_date}}**. The scope of the portal is set out in Schedule 2.

4.2 Unavailability of the portal entitles the Customer to a pro-rata reduction of the subscription fee. It does not create a right to terminate this Order and does not affect the Quarterly Read.

5. Founding seat, number of subscribers

5.1 The Customer acquires a **founding seat** in the Competitive Set.

5.2 The Provider will enter into no more than **three (3)** subscriptions at the founding price within the Competitive Set.

5.3 **The subscription is not exclusive.** Other brand houses in the Competitive Set may subscribe to the same read. The Provider does not and will not grant category exclusivity to any subscriber.

5.4 **The Provider undertakes, for the term of this Order, not to subdivide the Competitive Set defined in Schedule 1 into narrower sets in order to enter into a further subscription.**

6. Density: confirmation at Activation

6.1 By the date of Activation at the latest, the Provider will give the Customer a **written density statement** setting out (a) the current number of Rights-Clean Outlets in the Competitive Set and (b) the number forecast as at the Density Test Date.

6.2 If the statement forecasts fewer than 30 Rights-Clean Outlets, the Customer may, within 30 days, either agree a lower threshold under art. 7.1 in writing or **withdraw from this Order at no cost**. No invoice will be issued before that period expires.

6.3 The Provider reports the number of Rights-Clean Outlets to the Customer **monthly**.

7. Density guarantee

7.1 If, on the Density Test Date, there are fewer than **30 Rights-Clean Outlets** in the Competitive Set, then:

- a. **the second invoice under art. 9.2 will not be issued**, and
- b. **the amount paid under the first invoice will be refunded in full** within 30 days of the

Density Test Date.

7.2 This entitlement arises **automatically**, with no demand, notice or other act by the Customer.

7.3 A study fee paid under a separate order is not refunded; that study was delivered.

7.4 This provision is subject to nothing further.

8. Loss of data rights

8.1 If the Data Agreement terminates, or the Provider otherwise loses the right to supply data within the Scope, the Provider will notify the Customer within 5 business days and has **90 days** to offer an **equivalent substitute chain** within the same Competitive Set.

8.2 If the Provider does not offer an equivalent substitute within that period, or the Customer declines it, the Provider will refund the portion of the fee attributable to the undelivered period and this Order terminates. **The choice between accepting a substitute and taking the refund belongs to the Customer.**

9. Price and payment

9.1 The first-year subscription fee is **CZK 1,000,000** excluding VAT (founding price, discounted from list). VAT is added at the statutory rate.

9.2 The fee is reduced by **the full study fee** paid under order No. `{{study_order_number}}`, if that order was signed by 31 December 2026 at the latest. The balance is invoiced in **two equal instalments**:

- the **first invoice**: upon Activation; where the statement under art. 6.1 forecasts fewer than 30 Rights-Clean Outlets, no earlier than upon expiry of the period in art. 6.2,
- the **second invoice** after the Density Test Date, and only if the condition in art. 7.1 has not been triggered.

9.3 Invoices are due **30 days** from the date of issue.

10. Use of outputs, warranties

10.1 The Customer may use the outputs for its own internal purposes and disclose them to **one named agency**: `{{agency}}`, on the same terms. Disclosure to other agencies, affiliates or third parties is not permitted. Publication of any figure requires the Provider's prior written consent.

10.2 The Provider is responsible for the method and for delivery. It gives **no warranty of end-to-end anonymisation** and no warranty of commercial outcomes.

10.3 Outputs are anonymous aggregates; the minimum reported segment size is **25 persons**. The Provider performs no facial recognition, creates no biometric templates and does not work with identities. Age is estimated with the error band stated.

10.4 The Provider processes no personal data on the Customer's behalf; no data processing agreement is required.

10.5 Where only one Chain is instrumented in the Competitive Set, the outputs are a **channel read**, not a market average or benchmark, and **contain no comparisons at the level of individual competing brands**.

10.6 The Provider's liability is capped at the amount actually paid in the preceding 12 months. This cap does not apply to the extent the law does not permit liability to be limited by contract.

11. Term and renewal

11.1 The subscription runs for **12 months** from Activation and renews automatically for further 12-month periods.

11.2 The fee for the second and each subsequent year is **CZK 1,500,000** excluding VAT and **does not change for as long as the subscription runs without interruption**. The fee is not indexed.

11.3 The fee in art. 11.2 applies to the Scope defined in Schedule 1. Any extension of the Scope is priced separately.

11.4 Either party may terminate by written notice given at least **60 days** before the end of the current period.

12. General

12.1 Governing law: Czech law. Jurisdiction: the courts of Prague.

12.2 This Order exists in Czech and English versions. The version actually signed prevails.

Schedule 1: Scope (channel, Competitive Set, Chain) **Schedule 2: Portal scope**

In {{place}} on {{date}}

FOR THE PROVIDER

FOR THE CUSTOMER

{{director}}, managing director

{{representative}}